



Compliance Certification

I, Anant P Singh, the I/SA Procurement Market Leader of **IBM India Pvt Ltd** (collectively, with any subsidiaries, affiliates, or employees, "**Company**"), have the authority to certify to SALESFORCE.COM, Inc. (for and on behalf of its affiliates, "**Salesforce**" as used herein) on behalf of the Company as follows, to the best of my knowledge after reasonable due diligence, in connection with the Participation Agreement to be executed on or executed on or around the date of this Compliance Certificate between **IBM India Pvt Ltd** and [Salesforce.com Inc] (**Participation Agreement**) under the Global Reseller Agreement executed between International Business Machines Corporation and Salesforce.Com Inc on or around 15 October 2020 ("**Global Reseller Agreement**") relating to the Company's resale of Salesforce products to Customers as defined in the Participation Agreement:

1. I am qualified to certify the following information.
2. Company has not made, offered, or authorized, directly or indirectly, any payment of illegal or improper bribe, kickback, or anything of value to a Government Official¹ or to any other person while knowing (or being aware of a high probability) that all or a portion of such thing of value has or will be offered, given, directly or indirectly, to a Government Official, to improperly obtain or retain business or any improper business advantage as it concerns the resale of Salesforce products under the Participation Agreement.
3. Company has not received or offered any bribes or kickbacks or anything of more than nominal value from a current or prospective (i) Customer (as defined in the Participation Agreement), (ii) partner, (iii) vendor, or (iv) employee of Salesforce to improperly obtain or retain business or any improper business advantage as it concerns the resale of Salesforce products under the Participation Agreement.
4. For clarity, gifts and entertainment provided by Company in the ordinary course of business that do not violate any applicable law or regulation, do not violate the restrictions set forth in sections 2 and 3.
5. Company has not participated in any fraud or misrepresentation, or knowingly made any materially false statements to Salesforce personnel or Customers as it concerns the resale of Salesforce products under the Participation Agreement.
6. Company will ensure that contractual commitments are created with IBM suppliers and subcontractors who are directly engaged in the performance of Company's activities under the Participation Agreement, that require compliance with applicable laws.
7. Company has not been convicted of fraud or corruption. As a company with a substantial employee population and with clients in more than 170 countries, International Business Machines Corporation may be involved, either as plaintiff or defendant, in ongoing claims, demands, suits, investigations, tax matters and proceedings that arise from time to time in the ordinary course of business. To the

extent any matter is considered a reportable event under the SEC regulations, it would be disclosed in International Business Machines Corporation's Form 10-K, Form 10-Q, Form 8-K or other required SEC filings.

8. Company is not listed by any government agency as debarred, suspended or similarly ineligible for government procurement programs. Company has obtained any and all legally necessary licenses and permits as required to perform its obligations under the Participation Agreement.
9. Company shall promptly notify Salesforce, to the extent permitted by applicable law or regulations, if Company should learn or reasonably suspect based on credible information that a breach of this Compliance Certification has occurred, or that a violation of applicable U.S. or international anti-corruption laws has occurred by Company's suppliers or subcontractors in connection with resale activity under the Participation Agreement. It is understood that any such disclosure will not include attorney-client or other privileged materials, confidential information or information protected from disclosure by applicable law or regulations, however the foregoing does not further limit Company's obligations to notify Salesforce of a breach in accordance with the first sentence of this Section 9.
10. I acknowledge that Salesforce will materially rely on this certification. In the event that any statements made herein are determined to be materially false as of the date they were made, Salesforce shall have the right to immediately terminate the Participation Agreement upon 30 days written notice and an opportunity for Company to cure the activity giving rise to such false statement within such 30 day period, provided however that Salesforce may terminate the Participation Agreement immediately upon written notice to Company if activity giving rise to the false statement would reasonably be expected to subject Salesforce to reputation harm or inquiry, investigation, or sanction by any competent authority.

This Compliance Certification is executed as of the date written below.

Signature:

Date:

Anant P
Singh

Digitally signed by
Anant P Singh
Date: 2021.02.17
23:13:32 +05'30'

¹ "Government Official" means anyone that is, works for, or on the behalf of a (1) national, regional, municipal, or local government; (2) department, agency, subsidiary, or branch of a national, regional, municipal, or local government; (3) government-owned or government-controlled company (for example, a state-owned oil company, bank, airline, hospital, public university, etc.); (4) subsidiary of a government-owned or government-controlled company; (5) public international organization (for example, the International Monetary Fund, the United Nations, the World Bank, the World Trade Organization, etc.); (6) member of a royal family; or (7) political party, political party official, or candidate for political office. It should also be understood to encompass political parties and political campaigns as entities themselves.